

payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff filed a detailed expense report. GM does not object to any costs. Total costs are \$1,228.77. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$12,560.00 and costs of \$1,228.77 are awarded, for a total of \$13,788.77. No proposed order has been lodged as required by Local Rule 5.17(D). Plaintiff shall submit the order.

KUNAU VS. CITY OF REDDING, ET AL.

CASE NUMBER: 24CV-0205953

Tentative Ruling on Motion for Leave to File Cross-Complaint: Defendant/Cross-Defendant City of Redding moves for leave to file a Cross-Complaint against Defendant/Cross-Complainant Sysco Sacramento, Inc. Sysco Sacramento, Inc. filed a limited opposition that does not oppose the merits of the motion, but seeks a continuance of the September 10, 2026 trial date should the motion be granted. The City of Redding argues that a continuance is not necessary. Although Plaintiff Cody Kunau was served with the Motion and Opposition, Plaintiff did file a response.

Cross-complaints are to be filed at the same time as the Answer. However, a party may obtain leave of Court to file a cross-complaint at any time. Leave may be granted in the interest of justice. CCP § 428.50. Allowing the City of Redding to file the proposed Cross-Complaint is in the interest of justice. Sysco Sacramento, Inc.'s request for a continuance is reasonable.

The motion is **GRANTED**. A proposed Cross-Complaint was not lodged, therefore, the City of Redding will need to file the Cross-Complaint. The City of Redding is granted ten days leave to file the Cross-Complaint. The September 10, 2026 trial date is vacated. Discovery will remain open and all discovery deadlines will be based on the new trial date. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial and appear to set a new trial date. The City of Redding provided a proposed Order that will be modified to reflect the Court's ruling.

MCCLOSKEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0209479

Tentative Ruling on Motion for Summary Judgment: Petitioner Allen Donald McCloskey moves for summary judgment on his Verified Petition for Writ of Mandate filed on December 19, 2025. Respondents City of Redding, Redding Fire Department, Jerrod Vanlandingham, and Hailey Holstein oppose the motion.

As a preliminary matter, the Court notes that while Petitioner timely filed his Reply on June 3, 2026, two Supplemental Declarations were filed on June 15, 2026.

A reply to the opposition shall be served and filed by the moving party not less than 11 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise. The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.

CCP § 437c(b)(4)

The Supplemental Declarations filed June 15, 2026 will not be considered as they were filed in violation of the statute.

Requests for Judicial Notice. Respondents request that the Court take judicial notice of the Petition and Answer filed in this matter. Both requests are granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

The Verified Petition for Writ of Mandate includes a single cause of action for Violation of the California Public Records Act. Specifically, Petitioner alleges that Respondents failed to perform a diligent search, arbitrarily limited or expanded the scope to avoid compliance, did not assist Petitioner despite detailed clarifications and offers to discuss, withheld record without justification, and exceeded statutory timelines without valid extensions. The CPRA Request is listed in ¶ 11 as being submitted “On or about November 2025.” *Verified Petition*, ¶ 11. The CPRA request from November of 2025 was numbered by the City of Redding as PRR-2025-401. *Dec. Elaina Short* ¶ 5-6, Ex. C-1. Petitioner’s UMF 1 lists the CPRA request as being dated December 23, 2025. For supporting evidence, Petitioner lists “Declaration of Allen McCloskey ¶ 3; Exhibit A.” The Declaration of Allen McCloskey in Support of Motion for Summary Judgment contains a December 23, 2025 letter as Exhibit A. This same letter is provided by Respondents as Exhibit B-7. This is a separate CPRA request was assigned the number of PRR-2025-476. The Verified Petition in this matter was filed on December 19, 2025. The CPRA request listed in the Separate Statement was submitted on December 23, 2025. The CPRA request that forms the basis of the Verified Petition for Writ of Mandate is a separate and distinct CPRA request from the CPRA request listed in Petitioner’s Separate Statement and was not submitted to the City of Redding until after the Verified Petition was filed.

The pleadings define the issues addressed in a summary judgment motion. *Lewis v. Chevron U.S.A., Inc.* (2004) 119 Cal. App. 4th 690.

Every motion for summary judgment should be accompanied by a separate statement setting forth plainly and concisely all the material facts that the moving party contends are undisputed. This court has stated, “One of the purposes of the separate statement requirement is to inform the opposing party of what issues and undisputed material facts they must address in order to defeat the motion. [Citation.]” (*Elcome v. Chin* (2003) 110 Cal.App.4th 310, 322 [1 Cal. Rptr. 3d 631].) Similarly, in *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316 [125 Cal. Rptr. 2d 499], the court explained, “ ‘The due process aspect of the separate statement requirement is self evident—to inform the opposing party of the evidence to be disputed to defeat the motion.’ [Citation.] [¶] Where a remedy as drastic as summary judgment is involved, due process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail.”

Deveny v. Entropin, Inc. (2006) 139 Cal. App. 4th 408, 432.

Petitioner cannot obtain summary judgment for a CPRA request that is not part of the Verified Petition for Writ of Mandate.

The motion is **DENIED**. Petitioner provided a proposed Order that will be modified to reflect the Court’s ruling.